Washington, D. C.
INCLOSURE
No. 5496
APC 78

ORDER BY FRANK L. POLK
UNDER AUTHORITY OF EXECUTIVE ORDER OF
DECEMBER 3, 1918.

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AN ORDER FOR THE SALE OF ONE HUNDRED AND TWENTY-FOUR (124) SHARES OF THE COMMON CAPITAL STOCK OF THE LA SALLE PORTLAND CEMENT COMPANY, A CORPORATION OF THE STATE OF ILLINOIS, AT PRIVATE SALE, STATING THE REASONS THEREFOR IN THE PUBLIC INTEREST.

By virtue of the authority vested in the President by an Act to define, regulate and punish trading with the enemy and for other purposes approved October 6, 1917, known as the "Trading with the Enemy Act", and the amendment to such Act embodied in "An Act making appropriations to supply urgent deficiencies in appropriations for the fiscal year ended June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved March 28, 1918, and the amendment to such Act embodied in "An Act making appropriations to supply deficiencies in appropriations for the fiscal year ended June 30, 1918, and prior fiscal years on account of war expenses and for other purposes", approved November 4, 1918, to make certain orders such as that herein contained, which authority has been delegated to me by the Executive Order No. 3016 and signed by the President on the 3d day of December, 1918, I hereby, in the public interest, make the following determination and order:

The Alien Property Custodian is hereby authorized to sell at private sale without public or other advertisement, one hundred twenty-four (124) shares of the common capital stock of the La Salle Portland Cement Company, an

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Illinois Corporation, provided, however, that the price of two hundred eighty-six dollars ($286.00) per share can be obtained therefor.

My reasons for the foregoing determination, order, rule, and regulation, are:

(1) Three thousand six hundred and thirty-seven (3,637) shares, being all but one hundred twenty-four (124) of the shares of this corporation held by the Alien Property Custodian, were by him offered for sale on the tenth day of March, 1919, at public sale to the highest bidder after public advertisement of the time and place of sale. The highest bid received for this stock was two hundred eighty-six (286) dollars per share. This bid, after careful investigation, has been held to be adequate and the sale has been consummated accordingly.

(2) In view of the circumstances, a public sale of the additional one hundred twenty-four shares, conducted pursuant to the terms of the "Trading with the Enemy Act" relevant to such sales, would result in unnecessary and wasteful expenditures being made and in payment of avoidable costs, thereby reducing the net amount to be paid into the Treasury of the United States of America.

Done in the District of Columbia, this 18th day of June in the year of our Lord One Thousand Nine Hundred and Nineteen, and of the independence of the United States of America the one hundred and forty-third.

Francis P. Garvan

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